Brazoria County District Court

Cause No. 2024-CV-0008

Lindsey Smith, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	March 11, 2024
Plaintiff's counsel:	Andrew Lewis, Johnson & Lowery Injury Lawyers

PARTIES

Plaintiff Lindsey Smith is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write policies in the State of Texas, which issued the policy under which Plaintiff seeks benefits and against which Plaintiff brings this action.

FACTS

On April 10, 2023, Plaintiff was lawfully parked in a commercial parking lot in Baytown when another vehicle, insured by Defendant's policyholder, backed out of an adjacent space and struck the driver's side of Plaintiff's vehicle. The impact was sudden and forceful. Plaintiff reported the collision promptly and submitted a claim to Defendant under the applicable coverage. Defendant has acknowledged coverage in part but has not paid the full amount owed for Plaintiff's losses.

NEGLIGENCE

The policyholder's driver failed to keep a proper lookout, failed to yield to vehicles and pedestrians in the lot, and backed the vehicle without ensuring the way was clear. These acts constitute negligence. Defendant is responsible under the terms of its policy and applicable Texas law for the covered losses caused by its insured's negligence, and it further owed Plaintiff a duty to handle the claim in good faith and to pay benefits owed within the time required by the Texas Insurance Code.

DAMAGES

As a direct result of the collision, Plaintiff sustained a whiplash injury to the neck and upper back, with ongoing pain, stiffness, headaches, and reduced range of motion. Plaintiff has incurred medical expenses for examination, imaging, and physical therapy, has missed time from work, and has experienced pain and mental anguish. Plaintiff seeks recovery of economic and non-economic damages within the limits of the policy and as allowed by law, in an amount of $180,000.00, together with statutory interest, court costs, and attorney's fees as permitted under Texas law.